

**with notice of the new hearing date.**

2. Subject to paragraph no. 1 above, the Court finds that Defendant is in default of the Settlement Agreement.
3. Subject to paragraph no. 1 above, the Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$14,102.71, plus costs of \$518.50, for a total judgment of \$14,621.21.
4. Subject to paragraph no. 1 above, Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

**2. 9:00 AM CASE NUMBER: L23-03178**

**CASE NAME: DISCOVER BANK VS. CARL CASSADAY**

**\*HEARING ON MOTION IN RE: ENTER JUDGMENT PURSUANT TO CCP 6646**

**FILED BY: DISCOVER BANK**

**\*TENTATIVE RULING:\***

Plaintiff Discover Bank ("Plaintiff") filed a Motion to Enter Judgment on September 24, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 2, 2025.

**Background**

The parties entered into that certain settlement agreement filed on October 18, 2023 (the "Settlement Agreement"), the terms of which included payment by the defendant Carl Cassaday ("Defendant") in the amount of \$8,845.32, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed September 24, 2025 ("Supporting Declaration"), ¶15 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the amount of \$11,015.34 plus costs in the event of a default. *Id.*, **Exhibit A**, ¶¶2-6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶17. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶16.

After credit for amounts paid, there remains \$9,215.34 due and owing, plus costs of \$505.70. See Supporting Declaration, ¶¶17.

**Analysis**

Defendant was duly served with the motion. The motion is unopposed.

### Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the hearing information at the time of service or if separate notice of the hearing date was otherwise subsequently given.***
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$9,215.34, plus costs of \$505.70., for a total of \$9,721.04.
4. Plaintiff to submit revised forms of order and money judgment which appropriately designate plaintiff's current legal name (e.g. "Capital One, N.A., successor by merger to Discover Bank"). If no order for leave to amend plaintiff's name has been previously been entered, leave is hereby granted and the operative complaint deemed so amended. The proposed order shall recite such amendment. The Court takes judicial notice of the "NOTICE OF PLAINTIFF MERGER" filed in multiple pending cases before the Court regarding the merger.

3. 9:00 AM CASE NUMBER: L23-03444

CASE NAME: NAVY FEDERAL CREDIT UNION VS. TIMOTHY INGALLS

\*HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM MATTERS ADMITTED FILED BY PLN ON 08/19/2025

FILED BY: NAVY FEDERAL CREDIT UNION

\*TENTATIVE RULING:\*

Plaintiff Navy Federal Credit Union ("Plaintiff") filed a Motion to Deem Matters Admitted and Monetary Sanctions on August 19, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on December 2, 2025. The motion is unopposed.

### Background

Plaintiff served Defendant Timothy B Ingalls ("Defendant") with a Requests for Admission (Set One). See Declaration of Fahad Hassan filed August 19, 2025 ("Supporting Declaration"), ¶2 and **Exhibit A** thereto (the "RFAs"). The RFAs were served on November 27, 2023 by mail. *Id.* at ¶12\*.

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before January 2, 2024 (30 days from and after November 27, 2023 was December 27, 2023 and five calendar days thereafter fell on January 1, 2024, a court holiday, which would have extended the deadline to January 2, 2024). No responses were